

Multiple Choice (10 marks)

1. In which of the following the idea of 'natural law' first appeared
 - (a) French Revolution
 - (b) American War of Independence
 - (c) Roman Law
 - (d) Greek Thinking
2. Which one of the following doctrines is not associated with Natural Law thinking
 - (a) Doctrine of substituted security
 - (b) Doctrine of due process
 - (c) Doctrine of bias
 - (d) Doctrine of reasonableness
3. Why does Parfit oppose equality?
 - (a) He argues than an unequal society is inevitable.
 - (b) He claims that by giving priority to the needs of the poor, we can increase equality.
 - (c) He asserts that we are each responsible for our poverty.
 - (d) He rejects the idea of equality altogether.
4. Who amongst the following said that jurisprudence is the philosophy of positive law
 - (a) Gray
 - (b) Holland
 - (c) Hart
 - (d) Austin
5. Which of the following criticisms of Llewellyn's distinction between the grand and formal styles of legal reasoning is the most compelling?
 - (a) There is no distinction between the two forms of legal reasoning.
 - (b) Judges are appointed to interpret the law, not to make it.
 - (c) It is misleading to pigeon-hole judges in this way.
 - (d) Judicial reasoning is always formal.

True / False (10 marks)

Answer True or False

6. True or False: Civil and political rights are often referred to as first generation rights in constitutional law.
7. True or False: The Law and Economics School advocates that market efficiency should be the primary focus of legal decision-making.
8. True or False: Catharine MacKinnon argues that women's equality cannot be achieved solely through political pressure due to existing power imbalances.
9. True or False: Savigny's concept asserts that law is primarily a reflection of the sovereign's deliberate will and authority.
10. True or False: There are no limits to the application of Article 103, allowing it to override all other international agreements.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the relationship between customary law and treaty provisions, analyzing how treaties can influence the development and recognition of customary law in international legal systems.
12. Discuss the concept of 'de facto' organs of the State in international law. Analyze how these entities are recognized and their implications for state responsibility.

End of Paper